Constitutional Law

Right to Equality: Article 14

Equality Before Law, Equal Protection of Law, and Positive Discrimination

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Part I: Historical and Global Context of Discrimination

Universality of Discrimination

A common, and often erroneous, criticism directed at India posits that social discrimination—particularly caste-based discrimination and untouchability—was a phenomenon unique to the Indian subcontinent. A historically rigorous examination reveals that systemic, legally sanctioned discrimination was a near-universal feature of pre-modern and early-modern societies across the globe.

Comparative Instance: Untouchability in Japan

The concept of social ostracism based on birth was not confined to India. In Japan, a historically marginalised group known as the **Burakumin** (, literally "hamlet people") suffered discrimination analogous to untouchability. The existence of a specific term for this group in the Japanese language itself evidences the institutionalised nature of the practice. The Burakumin were subjected to residential segregation and restrictions on social intercourse, demonstrating that the pathology of caste-like discrimination transcended cultural boundaries.

Discrimination in Ancient and Classical Civilisations

The legal systems of ancient Mesopotamia, Greece, and Rome institutionalised social stratification:

1. **Status-Based Rights:** These societies were formally divided into rigid classes—free persons, slaves, citizens, and non-citizens. Legal rights, including the right to property, contractual capacity, and access to courts, were apportioned according to social status.
2. **Denial of Rights:** The corollary of conferring special privileges upon certain classes was the active and systematic denial of those same rights to others. The law functioned as an instrument of exclusion.

The Institution of Slavery and the Code Noir (1685)

In Europe, the institution of slavery was governed by elaborate legal frameworks. The principle of *partus sequitur ventrem* (the child follows the condition of the mother) ensured that slavery was heritable, creating the doctrine of "once a slave, always a slave."

The Code Noir (Black Code)

The **Code Noir** of 1685, promulgated by King Louis XIV of France, represents a notorious example of positive law enacted to systematise human exploitation.

The Code Noir of 1685

Origins: Enacted under the reign of Louis XIV for the regulation of French colonial possessions. **Substantive Provisions:** The Code consisted of 60 articles that:

1. Defined the legal conditions of slavery with precision.
2. **Legally classified human beings as movable property** (*meubles*), stripping enslaved persons of juridical personality.
3. Mandated Catholicism as the only permissible religion in the colonies and ordered the expulsion of Jewish persons from French colonial territories.

Duration: This legal instrument remained technically in effect until France formally repealed it, long after its revolutionary declarations of universal rights.

Bonded Labour versus Chattel Slavery

A comparative analysis warrants caution when equating India's historical institution of bonded labour with the chattel slavery of the Atlantic world.

- **Article 23 of the Indian Constitution** prohibits traffic in human beings and forced labour (*begar*). This provision is directed at practices akin to bonded labour.
- In bonded labour, the labourer, though exploited and coerced through debt, retains a residual legal personality and is not reduced to the status of chattel property.
- In chattel slavery, as codified by the Code Noir, the enslaved person was a *res* (a thing), possessing no rights whatsoever. The distinction, though not mitigating the brutality of bonded labour, is juridically significant.

The Hypocrisy of the French Declaration of 1789

The French Declaration of the Rights of Man and of the Citizen (*Déclaration des droits de l'homme et du citoyen*) of 1789 is celebrated as a foundational text of liberalism. However, its title and content betray a profound exclusionary logic.

The Exclusion of Women and the Poor

The Lacuna: The Declaration proclaimed the "Rights of Man **and of the Citizen**." Women were not entitled to the status of "citizen" under the revolutionary dispensation. Citizenship was circumscribed by property qualifications; only active citizens (*citoyens actifs*) who paid a certain amount of tax could vote. The poor, and all women, were relegated to the status of passive citizens (*citoyens passifs*), possessing civil rights but not political rights. **Conclusion:** The most vaunted proclamation of equality in the Western canon was, at its inception, a document for propertied white males. This historical fact is essential context when evaluating the genealogy of rights discourse globally.

Racial Discrimination in the United States

The legal architecture of racial segregation and prohibition of inter-racial marriage persisted in the United States well into the twentieth century.

Anti-Miscegenation Laws and *Loving v. Virginia*

Until the landmark decision of the Supreme Court of the United States, state laws prohibiting marriage between persons of different races were constitutionally valid.

Loving v. Virginia

Facts: Richard Loving, a white man, and Mildred Jeter, a Black woman, were married in the District of Columbia. Upon returning to their home state of Virginia, they were charged with and convicted of violating Virginia's Racial Integrity Act, which prohibited inter-racial marriage. **Judgment:** The United States Supreme Court, in a unanimous decision, held that the anti-miscegenation statutes violated the Equal Protection Clause and the Due Process Clause of the Fourteenth Amendment. **Temporal Context:** This case was decided in **1967**, a mere few decades ago. It stands as a stark refutation of any narrative that suggests racial and social discrimination is a phenomenon peculiar to non-Western societies.

The Doctrine of "Pure Blood"

The Nazi regime in Germany enacted the Nuremberg Laws (1935), which criminalised marriage and sexual relations between Jews and citizens of "German or related blood." The rationale was the protection of the so-called purity of the Aryan race (*Blutschutzgesetz*). This represents the most extreme and catastrophic expression of state-sanctioned social discrimination in modern history.

Key Takeaway

The historical record demonstrates conclusively that discrimination on the grounds of race, caste, religion, and sex was a global phenomenon. Indian society had—and continues to have—profound shortcomings requiring rectification. However, the portrayal of discrimination as an exclusively Indian pathology is historically false and intellectually dishonest. Every society must confront its own legacy, and the Indian constitutional project is a conscious and ongoing effort to dismantle inherited structures of injustice.

Part II: Conceptual Framework of Article 14

The Two Dimensions of Equality

Article 14 of the Constitution of India guarantees the Right to Equality in two distinct but complementary formulations:

1. **Equality Before Law:** A negative concept, derived from the English common law tradition.
2. **Equal Protection of the Laws:** A positive concept, drawn from the Fourteenth Amendment to the Constitution of the United States.

Equality Before Law: The Negative Right

This principle is fundamentally prohibitory in nature. It commands that the State shall not deny to any person equality before the law. Its core function is the abolition of special, discriminatory privileges that existed under pre-constitutional regimes.

Illustration: First Class Railway Travel

Under the colonial regime, special privileges were often attached to racial identity. Post-independence, the condition for entitlement is objective and impersonal. Whether a passenger is Black, White, Hindu, Muslim, Christian, Sikh, or Parsi, and regardless of caste or sex, the sole criterion for travelling in a first-class compartment is the possession of a valid first-class ticket. The law does not confer any special privilege based on irrelevant personal characteristics. This uniformity of application is the essence of Equality Before Law.

Equal Protection of the Laws: The Positive Right

Merely treating unequals equally perpetuates, rather than remedies, substantive inequality. The doctrine of Equal Protection of the Laws authorises, and in certain contexts requires, the State to make **reasonable classifications** and to extend preferential treatment to those who have been historically disadvantaged.

6.2.1 The Rationale: The Impossibility of Formal Competition

The professor illustrated this with a hypothetical contrasting two individuals:

Illustration: The Son of Privilege and the Son of Disadvantage

Child A (The Child of Privilege):

- Born into an affluent family with access to optimal nutrition and healthcare.
- Access to top-tier educational resources, coaching, and developmental tools from infancy.
- Social capital: familial connections with judges, ministers, and influential persons. Knowledge of institutions and professions is acquired through daily social osmosis, not rote memorisation.

Child B (The Child of Disadvantage):

- Born into poverty, with consequent health and nutritional deficits.
- First exposure to formal schooling occurs at a significantly later age; graduation is correspondingly delayed.
- No social capital; must overcome informational deficits and systemic barriers to access even the opportunity to compete.

Legal Conclusion: To apply a purely formal, identical standard of competition (e.g., the same qualifying examination with the same age limit and same cut-off marks) to both Child A and Child B would be to guarantee that Child B is rendered **perpetually ineligible** for positions of power, influence, and economic advancement. The competition is inherently rigged, not by individual malice, but by historically accumulated structural advantage.

6.2.2 Historical Illustration: The Indian Civil Services Examination

The professor cited the early years of the Indian Civil Services (ICS) examination under British rule as a paradigmatic example. For many years, no Indian candidate was successful. The reason was not a lack of innate intellectual capacity, but that the examination was structured to test a universe of knowledge—centred on Christian theology and the Bible—that was entirely alien to the Indian educational and cultural experience. Questions of the nature, "Who gave the apple to whom?" (a reference to the Biblical narrative of the Garden of Eden and the Fruit of Knowledge) were incomprehensible to a candidate not steeped in Christian scripture. This was a mechanism of structural exclusion.

Positive Discrimination and Affirmative Action

To remedy structural disadvantage, the State employs instruments of positive discrimination, also known in the United States as **Affirmative Action**. In India, this takes the form of the **Quota System** or reservations.

Forms of Affirmative Action

The professor identified several modalities through which positive discrimination operates:

1. **Preferential Treatment (Tie-Breaker):** Where candidates from different social groups achieve identical marks, the candidate from the more disadvantaged group (e.g., a Scheduled Tribe woman) is selected. This recognises that equal achievement in the face of greater disadvantage represents a greater measure of merit.

2. **Augmented Scoring (Bonus Marks):** A system where additional marks are added to the raw scores of candidates from disadvantaged groups. For example:

   - General: Raw score.
   - Other Backward Classes (OBC): Raw score + 5 marks.
   - Scheduled Caste (SC): Raw score + 10 marks.
   - Scheduled Tribe (ST): Raw score + 15 marks.
   - Woman (any category): Additional +10 marks.
   - Woman with disability: Further +5 marks.

   Under this model, a disabled ST woman with a raw score of 580 could receive an augmented score of $580 + 15 + 10 + 5 = 610$, potentially surpassing a General category candidate with a higher raw score but no augmentation.

3. **The Quota System (Reservation):** India adopted a more robust mechanism than simple affirmative action. Under the quota system, a fixed percentage of positions or seats is reserved for members of specified backward classes. The critical legal feature is that a candidate from a reserved category may be selected even if their absolute marks are lower than a candidate from the general category, provided they meet the minimum threshold (if any) set for the reserved pool.

Case Law: State of Madhya Pradesh v. Kumari Nivedita Jain

State of Madhya Pradesh v. Kumari Nivedita Jain – The Limits of Reservation

Facts: The State of Madhya Pradesh, in an effort to fill seats reserved for backward classes in medical colleges, progressively lowered the minimum qualifying marks. Initially set at 50, the requirement was reduced to 45, then 35, and finally to 30. When even this failed to attract a sufficient number of candidates, the State removed the minimum marks requirement entirely, permitting admission to candidates from reserved categories regardless of their entrance examination score—in effect, even a candidate scoring zero or negative marks could be admitted. **Issue:** The constitutional validity of admitting candidates with abysmally low or nil marks under the reservation policy. **Held:** The Supreme Court upheld the State's action. The case illustrates the extremity to which the logic of compensatory discrimination can extend and serves as a focal point for debates on the tension between "merit" and "social justice." **Critical Reflection:** The professor noted that this case demonstrates that the NEET examination system, from its inception, has grappled with the challenge of reconciling reservation policies with minimum standards of competence, and has never operated on a purely meritocratic basis.

Constitutional Foundation: Article 15(4)

The constitutional permissibility of such measures was firmly established in the seminal case concerning communal Government Orders in Madras.

State of Madras v. Champakam Dorairajan

Facts: The State of Madras had issued a Communal Government Order allocating seats in medical and engineering colleges on the basis of caste and community. **Issue:** Whether the Communal G.O. violated the fundamental right to equality under Article 14 and the prohibition on discrimination under Article 15(1). **Judgment:** The Supreme Court struck down the order as violative of Article 15(1), which prohibits discrimination on grounds of religion, race, caste, sex, or place of birth. **Constitutional Consequence:** This decision directly led to the **First Amendment to the Constitution of India (1951)**, which inserted **Article 15(4)**. This clause empowers the State to make special provisions for the advancement of any socially and educationally backward classes of citizens, and for the Scheduled Castes and Scheduled Tribes, notwithstanding the general prohibition on discrimination in Article 15(1).

Part III: The Taxonomy of Exploitation and Discrimination

The lecture mapped discrimination along two axes:

1. **Nature:** Negative (Exploitative) vs. Positive (Affirmative/Compensatory).
2. **Scope:** Individual vs. Social.

Individual Exploitation

Individual exploitation arises from personal relationships and private enmities. It is a function of interpersonal dynamics and the abuse of personal power. The law can punish specific acts of individual exploitation, but it cannot eliminate the human capacity for malice and the abuse of private trust.

Illustrative Examples of Individual Exploitation

The professor provided a series of case studies drawn from contemporary Indian society to illustrate the nature of individual exploitation:

1. **Madhumita Shukla Case:** A poetess who sought the patronage of a politically powerful figure, Amarmani Tripathi of Uttar Pradesh. When the relationship soured and she pressed for marriage, she was murdered. This exemplifies the lethal danger that can arise when personal ambition intersects with asymmetrical power relations.

2. **Geetika Sharma Case:** An air hostess who entered a relationship with a Haryana Home Minister, Gopal Kanda. After being exploited, she was allegedly coerced into servicing his business clients. Unable to endure the exploitation, she died by suicide, leaving a detailed note. The case highlights the abuse of employer-employee relationships and the commodification of a person.

3. **Shivani Bhatnagar Case:** A journalist who, in the pursuit of professional access to the Prime Minister's Office, developed a relationship with a senior IPS officer, R.K. Sharma. The entanglement ended in her murder. This case illustrates how professional ambition can lead individuals into vulnerable personal situations with fatal consequences.

4. **Naina Sahni (Tandoor Murder Case):** A victim of intimate partner violence, murdered by Sushil Sharma, a Congress politician, who then attempted to dispose of her body by burning it in a restaurant tandoor. The case is a gruesome testament to the extremes of domestic violence.

Important Observation

The professor observed that **as long as the sun and moon exist, individual exploitation will persist**. It is rooted in the ineradicable capacity of human beings for passion, jealousy, greed, and vengeance. The function of law is to punish it, but the law cannot, by its nature, prevent every private wrong before it occurs.

Social Discrimination

Social discrimination is distinct from individual exploitation. It is not predicated on personal enmity but on an individual's membership in a **targeted group**. The victim is not harmed because of who they are as an individual, but because of *what* they are as defined by the discriminatory social structure.

The Example of Dr. B.R. Ambedkar

The professor invoked the experience of Dr. B.R. Ambedkar as the archetypal example of social discrimination.

- Dr. Ambedkar, by all accounts, had no personal enmity with anyone. His father was a Subedar in the British Indian Army, a position of considerable respect.
- The discrimination he suffered—being forced to sit outside the classroom, being denied access to water by peons—was not a consequence of any personal dispute. It was a function of **social boycott based on caste**.
- Maharaja Sayajirao Gaekwad of Baroda, recognising his merit, sponsored his studies abroad. This would not have occurred if Dr. Ambedkar had been personally abrasive.

The Grounds of Social Discrimination

Social discrimination operates on multiple, often intersecting, axes:

1. **Sex:**
    - Denial of entry to places of worship (e.g., the Sabarimala Temple restrictions, litigated in *Indian Young Lawyers' Association v. State of Kerala*).
    - Historical denial of property rights to women, remedied in India only by the Hindu Succession (Amendment) Act, 2005.
    - The *Champakam Dorairajan* litigation itself was rooted in a denial of educational access on grounds of both caste and, implicitly, sex.
2. **Caste:** The hierarchical ordering of society by birth, imposing civil and religious disabilities on those at the bottom of the hierarchy.
3. **Race:** Discrimination based on race, as exemplified by the Jim Crow and apartheid regimes.
4. **Religion:**
    - The assertion of the supremacy of one faith over all others, and the attendant denial of the right to equal dignity for adherents of other faiths.
    - The professor noted the existence of extremist interpretations that deny the very right to life of persons of other religions.
    - The Nazi persecution of the Jews is the most extreme historical example of religion-based social discrimination. The lecture referred to the horrific practice, reported in recent conflicts, of checking sexual organs to determine religious identity before execution.
5. **Economic Status:**
    - The Marxist critique, drawing on the works of Karl Marx, posits that all laws are superstructural instruments designed to facilitate the exploitation of the proletariat by the bourgeoisie.
    - The lecture noted the radical literary expression of this sentiment in a Shakespearean line: "The first thing we do, let's kill all the lawyers" (*Henry VI, Part 2*, Act IV, Scene 2), which, in context, was a critique of those who use the law to oppress the poor.

Social Justice as the Objective of Positive Discrimination

The conceptual framework converges on the concept of **Social Justice**. Social Justice is the telos—the ultimate purpose—of the doctrine of Equal Protection of the Laws.

Definition: Social Justice

Social Justice is the set of positive measures undertaken by the State to dismantle the structures of **Social Discrimination**. It recognises that formal equality before the law is an insufficient guarantee of a dignified life for those who have been subjected to centuries of systemic subordination. Social Justice demands the creation of conditions in which the historically disadvantaged can participate in the life of the nation on terms of genuine, substantive equality.

Part IV: Summary and Comparative Analysis

Comparison of Core Concepts

Criterion	Equality Before Law	Equal Protection of Laws
Source	English Common Law	14th Amendment, U.S. Constitution
Nature	Negative	Positive
Command	The State shall **not deny** equality.	The State shall **afford** equal protection.
Function	Abolition of special, discriminatory privileges.	Creation of reasonable classifications and positive discrimination to remedy structural disadvantage.
Concept of Equality	Formal Equality (treating all alike).	Substantive Equality (treating unequals differently to achieve genuine equality).
Illustration	First-class train ticket: any person holding the ticket may travel, regardless of identity.	Reservation/quota system in education and employment.

Comparison of Exploitation and Discrimination

Criterion	Individual Exploitation	Social Discrimination
Basis	Personal enmity, private relationships, individual passion.	Membership in a targeted social group (caste, race, religion, sex).
Scope	Interpersonal.	Systemic and structural.
Target	The victim is targeted as an individual.	The victim is targeted as a representative of a group.
Remedy	Criminal prosecution and civil action for specific wrongs.	Constitutional and legislative measures for group advancement (affirmative action, reservations, Social Justice).
Persistence	Ineradicable so long as human passions exist.	Can be dismantled through sustained legal and social reform.

— End of Lecture Notes —